

AUTHORITY

PERSONAL DATA

Authority Personal Data

P.O. Box 93374, 2509 AJ The Hague

Hoge Nieuwstraat 8, 2514 EL The Hague

T 070 8888 500

F 070 8888 501

The Minister of Justice and Security

autoriteitpersoonsgegevens.nl

P.O. Box 20301

2500 EH THE HAGUE

Date

Our reference

Your letter of

30-7-2024

2024-014427

8 May 2024

Contact person

Your reference

and

53075

Subject

Legislative assessment draft Decision data processing personal approach to radicalization and terrorist activities

Dear Mr. Van Weel,

In a letter dated 8 May 2024, the Authority Personal Data (AP) was consulted regarding the draft Decision

data processing personal approach to radicalization and terrorist activities (hereinafter: the draft) based on

the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR).

The AP has several comments on the draft.

Main points

1. The weighing team assesses whether the registration of the case is in accordance with the purpose of the

case consultation. It is encouraging that the weighing team is now anchored in law in line with previous assessments by the AP and that the weighing team must take into account objective criteria such as the

willingness to use violence. It is still required that the weighing team bases its assessment solely on objective and concrete facts, circumstances, or behaviors and that the weighing team evaluates the type,

number, nature, weight, and frequency of signals that underlie the treatment (paragraph 1).

2. Participants, weighing team, and contact point must be required to justify certain choices in writing in the

case file. This benefits careful decision-making, is transparent towards the person involved, and allows for

better oversight of how they exercise their assessment discretion (paragraph 2).

3. The draft provisions regarding limitations on the rights of data subjects are incompatible with Article 23

GDPR, making it necessary to supplement the text of the draft with, among other things, the criteria that the

contact point must apply for limiting the rights of data subjects, the duration of the limitation, the categories

of personal data to which the limitation applies, the right to be informed of the limitation, and the

safeguards

that are taken to mitigate risks arising from the limitation (paragraph 3).

It is unclear when previously submitted personal data may be used upon reopening a case, making supplementation of the draft necessary (paragraph 4).

The law and the draft together provide insufficient guidance to weigh whether shielding should continue

longer or whether destruction or anonymization is appropriate. The explanation of the draft must clarify this

(point 5).

-
-

Scope of the draft

The draft contains further elaborations of the obligations in the Data Processing Act personal approach to

radicalization and terrorist activities (hereinafter: the law). The law and the draft largely codify existing practice.

The aim of the law is to prevent, reduce, and combat radicalization with the ultimate goal of preventing radicalization from escalating into violence. Radicalization is defined as follows:

“The process that can ultimately lead to terrorist activities or extremist activities, being activities where individuals or groups are willing to seriously violate the law or engage in activities that undermine the democratic rule of law for ideological reasons.”

To this end, the law provides for the possibility to discuss the approach to radicalizing or radicalized individuals in case consultations. The law provides grounds for processing personal data and safeguards for

the protection of personal data. Participants in case consultations may include: the mayor of the municipality

of residence and other municipalities, the police, the public prosecutor's office, probation institutions, and

the Child Protection Board. In March 2024, this involved 250 to 300 individuals discussed in a case consultation on radicalization.

The draft provides for:

the designation of the mayor of the municipality of residence as the contact point that handles requests regarding GDPR rights on behalf of participants (Article 2);

-

1 The law was adopted by the House of Representatives on April 2, 2024, and is currently in the written

preparation phase in the Senate. The AP issued its assessment of the law on April 16, 2020 (z2020-03421).

2 Explanatory Memorandum (hereinafter: EM) p. 8.

3 Explanatory Memorandum (hereinafter: EM) to the law p. 25.

4 Article 1, under a, of the law. Lesser offenses such as civil disobedience, such as deliberately getting arrested

for minor offenses, are classified as activism and not extremism (EM to the law p. 3).

5 For the processing grounds, see: Article 2, second paragraph, Article 4, Article 6, second and third paragraphs, and Article 7, first paragraph of the law. For the safeguards, see Articles 10 to 18 of the law.

6 These parties may only participate in a case consultation within the exercise of their tasks as described in

Article 3, first paragraph, of the law. The mayor of the municipality of residence, the police, and the public

prosecutor's office may also determine that they allow third parties on an incidental basis (Article 3, third paragraph, of the law).

- rules regarding the assessment of those requests (Article 3), informing the parties involved (Article 4), and reporting data breaches (Article 5);
- obligations for participants regarding legality (Article 6) and factual accuracy and quality (Articles 7 and 8) of personal data to be processed;
- obligations for participants to destroy or anonymize personal data if a case is not taken into consideration or if no further indications of risks are found (Article 15);
- the requirement of a Certificate of Good Conduct (VOG) or screening according to a legal regime for individual employees participating in a case consultation (Article 11);
- rules regarding the composition and powers of the legality committee, and an obligation for participants to justify deviations from the advice of the legality committee (Articles 12, 13, and 14);
- an obligation regarding the training of employees of the case consultation and the legality committee in handling personal data, rules and processes of case consultations, information analyses, information security, and data ethics (Article 16);
- a requirement to conduct an independent privacy audit by an independent expert two years after the entry into force and then every four years (Article 17).

Legislative Review

1

Assessment Criteria

From data that a participant has gathered or received, it may become apparent that there is a possibility of radicalization of a natural person or a legal entity. Participants can report a case for consultation to the police, the public prosecutor's office, or the mayor of the municipality of residence (hereinafter: the weighing team). Participants must first verify the factual accuracy and quality of the data provided with the report. The weighing team assesses whether the report of the case is in accordance with the purpose of the case consultation.

It is encouraging that the weighing team, in line with the legislative review of the AP dated April 16, 2020, is now anchored in the law. It is now also stated that the weighing team must take into account objective criteria in its assessment, including the willingness to apply or encourage violence, adherence to extremist views, the degree of identification with an extremist group or ideology, self-reliance, and social relationships.

This is one of the most important provisions in the law and the present draft. It concerns the assessment criteria to be applied that determine whether a case may or may not be dealt with in a case consultation, and thus the material scope of the law.

What is still missing, however, are safeguards that require the weighing team to base its decisions on objective and concrete facts, circumstances, or behaviors and to assess for itself what weight should be given to the signals underlying the report. For instance, the weighing team should consider the origin of the signals, how many signals there are, how many other participants have reported similar signals, and what interventions have already been made regarding the signals. The AP previously pointed out the risk that ambiguity about the strength of a signal could lead to soft information taking on a life of its own, causing individuals to be incorrectly labeled as radicalized.

Therefore, the draft must be further specified to clarify that the weighing team must base its decisions on concrete facts, circumstances, or behaviors and must assess against:

- the type of signal underlying the report;
- the number of signals as well as their nature and extent;
- the weight of the signal and the interventions already made regarding the signal or signals;

- the number of participants reporting corresponding signals, as well as the relationship between the signals.

This would also better align the draft with the WGS and the BGS, in accordance with the advice of the Council of State to apply comparable rules and safeguards for these collaborations.

The AP concludes that the weighing team may only base its decisions on objective and concrete facts, circumstances, or behaviors and that the weighing team assesses the type, number, nature, weight, and frequency of signals underlying the treatment, making the amendment of the draft necessary.

2

Duty to Justify

The law leaves important points of discretion to:

- participants to conclude that there may be radicalization of a natural person or a legal entity and that reporting is therefore warranted.
- the weighing team to conclude that the report of the case is in accordance with the purpose of the case consultation.

Date

30-7-2024

Our reference

2024-014427

•

the weighing team to conclude which participants and which third parties must be involved during
19

the case consultation.

participants to conclude that there are no compelling reasons opposing the introduction of certain categories of personal data.

participants to conclude that a case cannot yet be closed because there is still a risk of

21

radicalization and the threat of extremism or terrorist activities has not yet disappeared.

participants to conclude that processing after the closure of a case is still necessary and

22

personal data should therefore not yet be destroyed or anonymized.

23

the contact point to conclude that the rights of data subjects must be limited.

•

20

•

•

•

The AP considers it important that the draft provides for an obligation for participants, the weighing team, and

the contact point to document the considerations underlying these choices in writing in the case file. This contributes to careful decision-making, is transparent towards the data subject, and enables the data protection officer, the legality committee, the judge, and possibly the AP to better assess the legality of the choices made. Such

24

an obligation also aligns with the accountability obligation that the data controller already has.

Furthermore, the AP notes that in many of these cases, the decisions are not decisions in themselves in the sense of the General Administrative Law Act, so that Section 3.7 of that Act regarding the principle of motivation does not automatically apply.

The AP concludes that the draft still insufficiently ensures that participants, the weighing team, and the contact point can be adequately monitored in their exercise of discretion, so that supplementing the draft with an obligation to document certain choices in writing in the case file is necessary.

Limitation of rights of data subjects

Contact points are required to reject requests from data subjects and to forego the information obligation and

the notification obligation for data breaches if, in the opinion of one or more participants, an exceptional ground applies under Article 41 of the Implementation Act of the General Data Protection Regulation

25

(hereinafter: UAVG).

19

20

21

22

23

24

25

Article 5, fourth and fifth paragraphs, of the Act.

Article 4 of the Act.

Explanatory Memorandum to the Act, p. 44.

Article 9 of the Act.

Article 3, second paragraph, Article 4, second paragraph, and Article 5, second paragraph of the draft.

Article 5, second paragraph, GDPR.

Article 3, second paragraph, Article 4, second paragraph, and Article 5, second paragraph of the draft.

5/9

Date

30-7-2024

Our reference

2024-014427

****Article 41 UAVG**** provides data controllers with the possibility to set aside certain rights of data subjects and obligations arising therefrom, insofar as this is necessary and proportionate to safeguard certain interests. Article 41 UAVG is based on Article 23 GDPR, which allows for the limitation of the scope of data subjects' rights through Union or national provisions. However, Article 23 GDPR requires that limitations be established by the legislator itself, and it is the legislator who must include specific provisions in the law regarding, among other things, the scope of the limitation, the duration of the limitation, the categories of personal data to which the limitation applies, the right to be informed about the limitation, and the safeguards that are taken to mitigate risks arising from the limitation. The limitations must not affect the essence of fundamental rights and freedoms and must be necessary and proportionate in a democratic society to safeguard one or more of the interests listed in Article 23, paragraph 1 of the GDPR.

The AP has previously pointed out that Article 41 UAVG does not meet the requirements set by Article 23 GDPR, as this shifts the authority to limit the rights of data subjects unacceptably from the legislator to the data controller itself. The AP has already warned that this provision cannot provide a basis for deviating from the rights of data subjects, that the provision will prove to be non-binding, and that the provision will be declared inapplicable in the event of a specific complaint to the AP.

The AP chooses not to repeat the arguments it has often and extensively addressed in the past. However, the AP feels compelled to note that the concept referencing Article 41...

26 This concerns the right of access, right to rectification, restriction, erasure, and portability, and the right to be informed about the types of personal data being processed, about rectification and erasure thereof, the legal basis and purpose, the use of automated decision-making, exchanges with third parties, and data breaches (Chapter 3 and Article 34 GDPR).

27 These interests are identical to the interests as included in Article 23, paragraph 1, GDPR and

include, among others, public safety (subparagraph c), the prevention, investigation, detection, and prosecution of criminal offenses or the enforcement of penalties (subparagraph d), and the protection of the data subject or the rights and freedoms of others (subparagraph i).

28

29

30 MvT UAVG p. 39.

See footnote 27.

See:

Letter 'Draft Bill Implementation Act General Data Protection Regulation (34 851)' from the AP to the members of the Permanent Committee for Justice and Security of the House of Representatives of the States General dated January 19, 2018, p. 8-9.

Legislative assessment AP 'Adjustment Decision GDPR' dated February 22, 2018 (z2018-00024), p. 4-5;

Legislative assessment AP 'Draft Bill Consolidation Act Data Protection (Inventory of Initial Experiences UAVG)' dated November 11, 2020 (z2020-08972), p. 4-7;

Legislative assessment AP 'Draft Code of Conduct Private Investigation Agencies' dated December 10, 2020 (z2019-15602), p. 12;

Legislative assessment AP 'Amended Proposal Act Data Processing by Partnerships' dated November 9, 2021 (z2021-08378), p. 9-10;

Legislative assessment AP 'Additional Themes for Consideration in the Upcoming Evaluation of UAVG and Next Amendment of UAVG' dated January 26, 2023 (2023-01-AWO-ABR), p. 15-16;

Legislative assessment AP 'Decision Data Processing by Partnerships' dated November 3, 2023 (z2023-1119), p. 2.

31 Letter 'Draft Bill Implementation Act General Data Protection Regulation (34 851)' from the AP to the members of the Permanent Committee for Justice and Security of the House of Representatives of the States General dated January 19, 2018, p. 8-9 and legislative assessment 'Draft Bill Consolidation Act Data Protection (Inventory of Initial Experiences UAVG)' dated November 11, 2020 (z2020-08972), p. 5.

6/9

****Date****

30-7-2024

****Our reference****

2024-014427

The UAVG does not comply with the AVG. The draft must provide an independent basis for the limitation of the rights of data subjects and must clarify, among other things, the criteria that the contact point must apply for the implementation of the limitation, its duration, the categories of personal data to which the limitation applies, the right to be informed of the limitation, and the safeguards that are taken to mitigate risks arising from the limitation. The AP concludes that the draft provisions regarding the limitation of the rights of data subjects are incompatible with Article 23 of the AVG, making it necessary to supplement the text of the draft. If adopted unchanged, these provisions must be set aside due to conflict with higher law.

****4 Renewed Use****

After the closure of a case, personal data is initially only shielded. If circumstances arise that lead to the reopening of the case, and the personal data has not yet been destroyed or anonymized, the shielding can be lifted. It is unclear what circumstances must occur for the lifting of shielding, and thus renewed use of previously submitted personal data. The law and the explanatory memorandum do not address this. The draft does allow for further rules to be established regarding this, as shielding, destruction, and anonymization are safeguards that fall under the scope of Article 18 of the law. The AP therefore considers whether alignment with Article 1.16, second paragraph, of the BGS is

appropriate, so that renewed processing of previously submitted data is only permitted if (1) the treatment criteria (see paragraph 1 of this advice) still apply or (2) if, given the complexity of the issues, there is a significant risk of relapse that would again meet those criteria. According to the third paragraph of that provision, the retention period for data that is renewed processed is two years, and this can be extended by two years each time. This would better align the draft with the WGS and the BGS, again in line with the earlier mentioned advice from the Council of State to apply similar rules and safeguards given the similarities between the case discussions. The AP concludes that it is unclear when previously submitted personal data may be used upon reopening a case, making the supplementation of the draft necessary.

****5 Continuation of Shielding****

Article 6, third paragraph, of the law.

Explanatory memorandum to the law p. 44.

See footnote 16

****Date****

30-7-2024

****Our reference****

2024-014427

Furthermore, the AP notes that under the law and the present draft, it is still not clear how long shielding may continue after closure before personal data in case files must be destroyed or anonymized. According to the law, this must occur as soon as processing is no longer necessary, and in any case after five years have passed since the last processing, unless this is not possible due to a legal provision or in the context of legal proceedings. However, the explanations accompanying the law and the draft do not address the interpretation of that necessity criterion. According to the AP, there can be no necessity if processing continues solely because there is an unspecified suspicion that a data subject may radicalize again in the future. Such a suspicion must be substantiated with concrete facts, circumstances, or behaviors to justify the continuation of the processing of highly sensitive personal data. The AP concludes that the law and the draft together provide insufficient guidance to weigh whether shielding should continue any longer or whether destruction or anonymization is indicated, so the explanation of the draft must provide clarity on this matter.

****Workload AP****

It is likely that the draft will require the AP to make additional efforts. This effort has not yet been accounted for in the financing of the AP. This will need to be addressed in consultation with the Secretary of State for Legal Protection - as the responsible party for the budget from which the AP is financed - prior to the entry into force. For this reason, a copy of this legislative assessment is sent to the Secretary of State for Legal Protection.

****Disclosure****

This legislative assessment will be published on the AP's website within two weeks.

Yours sincerely,
Authority Personal Data,

(anonymous)

Monique Verdier
Vice-Chairperson

Date

30-7-2024

Our reference

2024-014427

-Appendix

--*--

Assessment Framework AP

The AP examines whether the draft regarding the processing of personal data is in accordance with

the Charter of Fundamental Rights of the European Union (EU), the GDPR (Regulation 2016/679), or the Police and Justice Directive (Directive 2016/680), the general legal principles of the EU, and other relevant law, whereby it must be sufficiently demonstrated that the principle of proportionality is met, by:

1. the draft being suitable for achieving the pursued objective of general interest or the protection of the rights and freedoms of others (suitability);
2. the objective not being reasonably achievable in an equally effective manner by other means that would interfere less with the fundamental rights of the data subjects (subsidiarity);
3. the interference not being disproportionate to that objective, which particularly implies a weighing of the importance of the objective and the severity of the interference (proportionality);
4. the draft being sufficiently clear and precise regarding the scope and being predictable in its application (legal certainty);
5. the draft sufficiently indicating under which circumstances and conditions personal data may be processed, thus ensuring that the interference is limited to what is strictly necessary (substantive and procedural safeguards); and
6. the draft being binding under national law (bindingness under national law).

- 1.
- 2.
- 3.
- 4.
- 5.
- 6.

The AP pays particular attention to the rights of data subjects and the compliance of the draft with Article 6, paragraphs 1 and 3, and Article 9 of the GDPR (Regulation 2016/679), or Articles 8 and 10 of the Police and Justice Directive (Directive 2016/680), as well as with the principles established in Article 5 of the GDPR or Article 4 of the Directive. This implies, among other things, that:

- (a) processing must be lawful, fair, and transparent with respect to the data subject;
- (b) personal data may only be collected for specified, explicitly defined, and legitimate purposes; and
- (c) processing must be adequate, relevant, and limited to what is necessary for the purposes.

--*--